

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY
2022 APR 11 AM 11:35

In The Chancery Court
of Lafayette County Mississippi

CHANCERY CLERK

Phyllis Crowder

BY DC: RJA Cause Number CV2016-422W

V

Matthew Reardon

MOTION TO DISMISS

Comes now before this court, Matthew Oliver Reardon- your Defendant- whom properly moves this court for Dismissal of the petitioner's claim to include it's subsequently attached orders under MRCP 12B(1) and/or MRCP 12B(6).

- 1) Defendant states on both occasions where he was listed as a no-show that in fact this court lacked the proper jurisdiction through an ongoing appeal in the Mississippi Supreme Court on this issue thus the subject matter contested lacked Jurisdiction at both instances in which this court scheduled a hearing date.
- 2) On 1-14-2022 Defendant filed a written response in rebuttal to being considered a no-show. Defendant demonstrated this court lacked subject matter jurisdiction to hold a hearing due to a (then) current appeal docketed before the MS Supreme Court under 2021-TS-01191.

- 3) Defendant was improperly noticed of rescheduled hearing.
- 4) That Defendant was notified on 4-1-2022 of his appeal being dismissed in the Mississippi Supreme Court, not based upon merit but based upon Defendant's inability to pay the costs of the appeal after this court denied Defendant's In Forma Pauperis Application. Pursuant to MRCP 12B(1) this court lacked subject matter jurisdiction for the hearings it scheduled and held at the time it held them without providing adequate and sufficient notice to Defendant, thus the orders should be vacated.
- 5) If the above orders are vacated, the complaint filed by the plaintiff should also be dismissed under MRCP 12B(6) for failing to state a claim for which relief should be granted due to Plaintiff's claim alleging a matter which was unsubstantiated in a court of law along with her being in plain and clear violation of the Clean Hands Doctrine, barring her from bringing such claims to begin with, particularly after Defendant's latest discovery.
- 6) That lies by select officials much like the repetitive lies casted by the Plaintiff and her legal counsel left unchecked and unpunished led to CommuniCare filing an affidavit for commitment on two separate occasions during the contested period of time unfairly and undeservingly committing Defendant to a state hospital facility for a total of nearly 6-weeks' time. The aforementioned is a currently filed

open legal matter in the US District Court for North MS under cause number 3-22-CV-00050-SA-JMV and in it this court stands accused of improper involvement. A Copy of the filed complaint is viewable by visiting <https://lafayettesms.net/complaint>

- 7) Since Day 1 Defendant has been granted Joint Legal Custody. See attached exhibit. The plaintiff has always had an obligation to confer with Defendant over any matters of importance regarding the care and wellbeing of the minor child.
- 8) **That the last order which was in full force and effect prior to this proceeding commencing stated:** "Pursuant to the Original Order dated 8/3/2016, the parties agree that they will share joint legal custody with the mother having primary physical custody and the Father receiving standard visitation rights, in no event less than those visitation rights set out in the visitation schedule."
- 9) That during the month of February 2022 Plaintiff chose to withdraw the minor child from attendance at Lafayette Elementary School where she had the direct assistance and care of her teachers and friends. None of this was ever conveyed to Defendant and the abovementioned was done in spite and haste of Defendant to prevent his stepdaughter and the minor child from having any contact or communication.

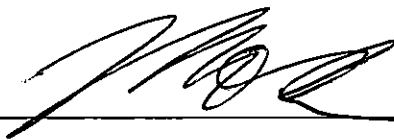
10) That time and time again Plaintiff had taken it on herself to sever visitation between the Defendant and his minor child without order of this court, waiting until months later to file anything with the court to justify anything of the such.

WHEREFORE ALL PREMISES CONSIDERED

Defendant requests this court vacate and strike it's prior two orders entered along with vacating the Plaintiff's complaint under MRCP 12B(1) and 12B(6) for lack of subject matter jurisdiction and failing to state a claim which relief can be granted.

Defendant prays for any other general or special relief for which he may be granted

Respectfully Submitted this 11th Day of April 2022

A handwritten signature in black ink, appearing to read 'M. Reardon', is written over a horizontal line.

Matthew Reardon

Defendant

legal@mattreardon.com

(662)701-0646

117 CR 401

Oxford, MS 38655

IN THE CHANCERY COURT OF LAFAYETTE COUNTY MISSISSIPPI

CAUSE NUMBER CV2016-422W

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

PHYLLIS MARIE CROWDER

PLAINTIFF

2022 JAN 14 P 3:01

CHANCERY CLERK

VS

BY EC

TS

MATTHEW OLIVER REARDON

DEFENDANT/RESPONDANT

DEFENDANT'S RESPONSE TO ORDER ENTERED 1-12-2022

Comes now Before this court, Matthew Reardon, your Respondent, whom hereby gives his response to the order entered on January 12, 2022:

Respondent DENIES that the venue and jurisdiction are proper in this court and states that the proper venue and jurisdiction in this matter has shifted to the Mississippi Supreme Court until such time as the issues appealed from this trial court get properly presented and addressed. **The matter at hand is docketed under Re: Matthew Oliver Reardon and cause number 2021-TS-01191.** The appeal is currently active, and awaiting response and ruling. As such and until the matter is ruled upon by the Mississippi Supreme Court, the Chancery Court of Lafayette County lacks jurisdiction to order any such hearing upon the aggrieved upon matters. Therefore, Respondent should not be considered at fault as a no-show for not attending a hearing in which the court lacked the proper jurisdiction to conduct in the first place unless the parties are willing to rescind the latest orders appealed in the best interest of the minor child as well as all parties involved.

Respectfully Submitted this 14th Day of January 2022



Matthew Reardon
Defendant/Respondent/Appellant
117 CR 401
Oxford, MS 38655
matt@mattreardon.com
662-550-9752

FILED
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

PHYLLIS MARIE CROWDER PLAINTIFF

vs. 2022 JAN 13 P 3:58 CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON CHANCERY CLERK DEFENDANT

BY DC TJ

ORDER OF CONTINUANCE AND SETTING

This cause, having been set for hearing on the 12th day of January, 2022, at 9:30 a.m. and the Defendant, after being called in open court and failed to appear, the Court hereby finds as follows:

1. That venue and jurisdiction are proper in this Court.
2. That the prior Order of this Court shall remain in full force and effect until further Order of this Court.
3. That this matter is hereby continued until the 30th day of March, 2022, at the Lafayette County Chancery Building in Oxford, Mississippi at 9:30 a.m. or as soon thereafter as the parties may be heard.

ORDERED, ADJUDGED and DECREED on this, the 12th day of January, 2022.

Roseanne Watson
CHANCELLOR

This Order Prepared by *Mona T. Pittman*
MONA T. PITTMAN, MSB # 9754
Attorney for Petitioner
P. O. Box 2958
Oxford, MS 38655
662-234-9346
662-234-9748 (facsimile)
mona@panola.com

No Show
Matthew Reardon, Pro Se

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

2022 APR -4 A 9:18

PLAINTIFF

VS.

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON

DEFENDANT

ORDER

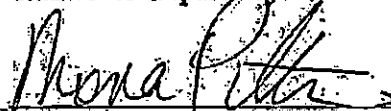
THIS MATTER came before this Court on March 30, 2022, and the Court, being fully advised in the premises, does hereby find as follows:

1. That jurisdiction and venue are proper in this Court.
2. That this Court entered an Amended Order on October 1, 2021, which suspended Matthew Reardon's visitation with the parties' minor child until further Order of the Court and continued the matter until January 12, 2022. (See Exhibit "A").
3. That Defendant Matthew Reardon failed to appear at the January 12, 2022, hearing and as such, the prior Order suspending his visitation was ordered to remain in full force and effect. The matter was then scheduled to be heard March 30, 2022. (See Exhibit "B").
4. That Defendant Matthew Reardon was called three times in open Court on March 30, 2022 and did not appear; therefore, Defendant's visitation with the minor child shall remain suspended, and the previous Order filed January 12, 2022 will remain in full force and effect until further Order of this Court.

SO ORDERED, on this the 4th day of April, 2022.

Ronell H. Hantani
CHANCELLOR

This Order Prepared by:



Mona T. Pittman (MSB # 9754)

Attorney for Plaintiff

P.O. Box 2958

Oxford, MS 38655

(662) 234-9346 Telephone

(662) 234-9748 Facsimile

mona@panola.com

Matthew Reardon, Pro Se Defendant

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI
STATE OF MISSISSIPPI
PHYLLIS MARIE CROWDER-KESTER PLAINTIFF

VS. 2021 OCT -1 P 2 CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON CHANCERY CLERK DEFENDANT

BY DS
AMENDED ORDER

THIS MATTER came before this Court on September 14, 2021, on the Plaintiff's Petition for Modification, Citation for Contempt and Other Relief, and the Court hereby finds as follows:

1. That the Plaintiff filed her Petition for Modification, Citation for Contempt and Other Relief on August 10, 2021, and properly served the Defendant with process.
2. That the Court has reviewed the Petition and the request for nail bed drug testing. The Court finds that the request is well-taken and therefore Orders the Defendant, Matt Reardon, to immediately submit to nail bed drug testing and the testing facility is hereby Ordered to provide the results of the same directly to this Court, Honorable Robert Whitwell, P. O. Box 29, Oxford, MS 38655 or facsimile 662-234-6966.
3. That the Plaintiff shall be responsible for the cost of said drug screen.
4. That the Defendant's visitation with the parties' minor child is hereby suspended until further Order of this Court.
5. This matter is hereby continued until the 12th day of January, 2022.

SO ORDERED, on this the 1st day of September, 2021, effective, *per se* *mona* *pro tunc*, to September 14, 2021.

This Order Prepared by:

Mona Pittman
Mona T. Pittman (MSB # 9754)
Attorney for Plaintiff, mona@panola.com
P.O. Box 2958
Oxford, MS 38655
(662) 234-9346 Telephone
(662) 234-9748 Facsimile

Matthew Reardon
CHANCELLOR

Refused to sign per Pl's counsel. Done
Matthew Reardon, Pro Se Defendant.



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI
STATE OF MISSISSIPPI
LAFAYETTE COUNTY
PHYLLIS MARIE CROWDER PLAINTIFF

vs, 2022 JAN 13 P 3:58 CAUSE NUMBER: CV-2016-422W
CHANCERY CLERK
MATTHEW OLIVER REARDON DEFENDANT

BY DC *RJ*
ORDER OF CONTINUANCE AND SETTING

This cause, having been set for hearing on the 12th day of January, 2022, at 9:30 a.m. and the Defendant, after being called in open court and failed to appear, the Court hereby finds as follows:

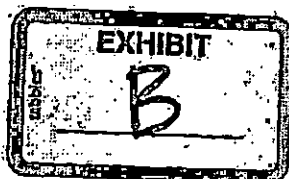
1. That venue and jurisdiction are proper in this Court.
2. That the prior Order of this Court shall remain in full force and effect until further Order of this Court.
3. That this matter is hereby continued until the 30th day of March, 2022, at the Lafayette County Chancery Building in Oxford, Mississippi at 9:30 a.m. or as soon thereafter as the parties may be heard.

ORDERED, ADJUDGED and DECREED on this, the 12th day of January, 2022.

Robert L. Williams
CHANCELLOR

This Order Prepared by
Mona T. Pittman
MONA T. PITTMAN, MSB # 9754
Attorney for Petitioner
P. O. Box 2958
Oxford, MS 38655
662-234-9346
662-234-9748 (facsimile)
mona@paulola.com

No Show
Matthew Reardon, Pro Se



FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY, MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2021 MAR 23 AM 10:02

CHANCERY CLERK

BY CC

TJ

PHYLLIS MARIE CROWDER-KESTER
PLAINTIFF

VS.

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON
DEFENDANT

AGREED ORDER

The parties, having announced that they have come to a mutual agreement regarding issues of child visitation, and the Court having reviewed the same and being fully advised in the premises, hereby Orders as follows:

1. Jurisdiction and venue are proper in this Court;
2. Phyllis Marie Crowder-Kester and Matthew Oliver Reardon are the natural parents of a minor female child, namely L.E.R., born to them outside of wedlock;
3. Pursuant to the Original Order dated 8/3/2016, the parties agree that they will share joint legal custody with the mother having primary physical custody and the Father receiving standard visitation rights, in no event less than those visitation rights set out in the visitation schedule.

4. Each party agrees to maintain their home, vehicle(s), and personal property including that of the minor child in such a manner befitting of the minor child
5. Disciplinary measures involving any type of corporal punishment are to be administered by Phyllis Marie Crowder-Kester or Matthew Reardon only
6. Child Support will remain the same at \$400 per month as previously ordered by this court. Upon becoming gainfully employed, Matthew Reardon's child support obligation may be reviewed by this Court.
7. Neither party will transport the minor child in a vehicle without a properly installed, age appropriate child restraint device.
8. In an effort to forgo any unnecessary civil litigation and frivolous criminal prosecution, Matthew Reardon agrees to rescind his counter-claim filed with this court against Crowder-Kester and her council on record and also agrees to release Mrs. Crowder-Kester from any civil liability or contempt stemming from her actions as they relate to this particular cause at hand. Likewise, Mrs. Crowder-Kester agrees to withdraw her criminal complaint filed against Mr. Reardon in Justice Court dating back to February of 2020, a matter which was slotted for trial on 3/22/2021 that has since been continued to a later date. Both Parties agree to comply within 5 days of this agreement and **plaintiff agrees to send email correspondence of her intent to dismiss to Bella J Chain at bjchainiii@gmail.com and CC'ing Defendant at matt@mattreardon.com.**

9. The Guardian Ad Litem is hereby dismissed and relieved of her duties in this matter and all Guardian Ad Litem Fees and Court Costs will hereby be taxed to the Plaintiff in this cause, Phyllis Crowder-Kester as agreed upon at the initial hearing.
10. Neither party will communicate any grievance to Department of Child Protective Services. If any complaint or grievance arises which serious in nature, the complaining party is to seek assistance from local law enforcement in the proper jurisdiction.
11. From the date of this agreement going forward, Parties agree not to further publicly divulge new information in regards to any current or past legal matters between them, along with any other issues or disagreements between the parties. Any public records or productions which have not been published must be redacted of the other party prior to being published or produced.

SO ORDERED on this, the 23rd day of March, 2021.

Donna L. Warner

CHANCELLOR

Prepared by:

MATTHEW REARDON
PRO-SE DEFENDANT
117 CR 401
OXFORD, MS 38655
TELEPHONE: (662) 812-1613
matt@mattreardon.com

AGREED

Phyllis Crowder-Kester
PHYLLIS MARIE CROWDER-KESTER
PLAINTIFF

MATTHEW OLIVER REARDON
DEFENDANT

Lori Solinger
LORI SOLINGER
GUARDIAN AD-LITEM

Mona Pittman
Attorney for Plaintiff

9. The Guardian Ad Litem is hereby dismissed and relieved of her duties in this matter and all Guardian Ad Litem Fees and Court Costs will hereby be taxed to the Plaintiff in this cause, Phyllis Crowder-Kester as agreed upon at the initial hearing.
10. Neither party will communicate any grievance to Department of Child Protective Services. If any complaint or grievance arises which serious in nature, the complaining party is to seek assistance from local law enforcement in the proper jurisdiction.
11. From the date of this agreement going forward, Parties agree not to further publicly divulge new information in regards to any current or past legal matters between them, along with any other issues or disagreements between the parties. Any public records or productions which have not been published must be redacted of the other party prior to being published or produced.

SO ORDERED on this, the ____ day of March, 2021.

Prepared by:

CHANCELLOR

MATTHEW REARDON
PRO-SE DEFENDANT
117 CR 401 OXFORD, MS 38655
TELEPHONE: (662) 812-1613
matt@mattreardon.com

AGREED:

PHYLLIS CROWDER-KESTER
PLAINTIFF

Matthew Reardon

MATTHEW OLIVER REARDON
PRO-SE DEFENDANT

MONA PITTMAN
COUNSEL FOR PLAINTIFF

LORI SOLINGER
GUARDIAN AD-LITEM

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2016 AUG -3 PM 2:54

IN THE MATTER OF THE CUSTODY OF
LYDIA ELISE REARDON

CHANCERY
KC
BY

CAUSE NO.: CV2016-422W

MATTHEW OLIVER REARDON and
PHYLLIS MARIE CROWDER

CO-PLAINTIFFS

JOINT COMPLAINT TO ESTABLISH PATERNITY,
CHILD CUSTODY, AND CHILD SUPPORT

COME NOW Co-Plaintiffs Matthew Oliver Reardon ("Matt") and Phyllis Marie Crowder ("Liz") and files their Joint Complaint to Establish Paternity, Child Custody, and Child Support, and for cause would submit unto this Court the following facts:

1. Co-Plaintiffs are both adult resident citizens of Lafayette County, Mississippi and have been so for six (6) months preceding the filing of this Complaint.
2. On or about August 19, 2014, Liz gave birth to a female child, Lydia Elise Reardon (the "Minor Child").
3. The Minor Child presently resides with Liz at 22 County Road 422, Water Valley, Lafayette County, Mississippi, and has done so since on or about July 8, 2016. From her birth until on or about July 8, 2016, the Minor Child resided with Matt and Liz in Lafayette County, Mississippi.
4. Neither party has participated, as a party or witness or in any other capacity, in any other proceeding concerning the custody of or visitation with the Minor Child.

5. Neither party knows of any other proceeding that could affect the current proceeding, including proceedings for enforcement and proceedings relating to domestic violence, protective orders, termination of parental rights, or adoptions.

6. Neither party knows of any other person not a party to this proceeding that has physical custody of, or claims rights of legal custody of, or visitation with, the Minor Child.

7. Jurisdiction is proper in this Court pursuant to the provisions of the Uniform Child Custody Jurisdiction and Enforcement Act, § 93-27-201(1)(a) of the *Mississippi Code of 1972*, as amended, insofar as this state is the home state of the Minor Child on the date this Complaint was filed.

8. Venue is proper in this Court pursuant to the provisions of § 11-5-1 of the *Mississippi Code of 1972*, as amended, insofar as the parties both reside in Lafayette County.

9. The parties' hereto have never been married to each other but Matt has accepted his paternity by signing the Minor Child's birth certificate.

10. As such, Liz requests that this Court enter an Order of Filiation finding Matt to be the natural father of the Minor Child.

11. The parties would show that both are fit and proper persons to have full care, custody and control of the Minor Child.

12. The parties would ask this Court to grant them joint legal custody of the Minor Child.

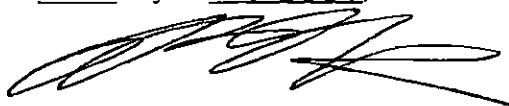
13. The parties would further ask this Court to grant Liz sole physical custody of the Minor Child, subject only to the reasonable visitation rights awarded to Matt.

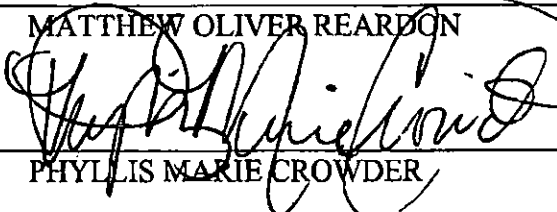
WHEREFORE, PREMISES CONSIDERED, Co-Plaintiffs Matthew Oliver Reardon and Phyllis Marie Crowder respectfully pray:

- A. That this Court would enter an Order of Filiation establishing Plaintiff Matthew Oliver Reardon to be the natural father of the Minor Child;
- B. That the parties be awarded joint legal custody of the Minor Child; and
- C. That Plaintiff Phyllis Marie Crowder be awarded sole physical custody of the Minor Child, subject only to the reasonable visitation rights awarded to Plaintiff Matthew Oliver Reardon;

Co-Plaintiffs further pray for such additional and further relief as this Court may deem equitable and appropriate, and Co-Plaintiff also pray for general relief.

RESPECTFULLY SUBMITTED, on this the 3RD day of AUGUST, 2016.



MATTHEW OLIVER REARDON


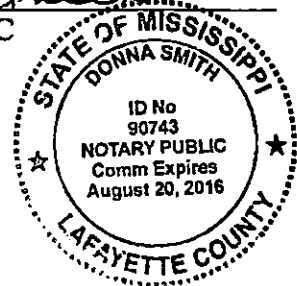
PHYLLIS MARIE CROWDER

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

THIS DAY personally appeared before me, the undersigned authority within and for the State and County aforesaid, within my jurisdiction, the within named MATTHEW OLIVER REARDON, who, being by me first duly sworn, stated on oath that he is a co-plaintiff named in the above and foregoing *Joint Complaint to Establish Paternity, Child Custody, and Child*

Support, and that he has carefully read same; that the matters and facts set forth in said complaint are true and correct as therein stated; and that he verily believes that he is entitled to the relief sought in said complaint.

SWORN TO and subscribed before me on this the 3rd day of August, 2016.
My Commission Expires: 8/20/2016
Donna Smith
NOTARY PUBLIC



STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

THIS DAY personally appeared before me, the undersigned authority within and for the State and County aforesaid, within my jurisdiction, the within named PHYLLIS MARIE CROWDER, who, being by me first duly sworn, stated on oath that she is a co-plaintiff named in the above and foregoing *Joint Complaint to Establish Paternity, Child Custody, and Child Support*, and that she has carefully read same; that the matters and facts set forth in said complaint are true and correct as therein stated; and that she verily believes that she is entitled to the relief sought in said complaint.

SWORN TO and subscribed before me on this the 3rd day of August, 2016.
My Commission Expires:
Angie Allen
NOTARY PUBLIC

